

**IN THE CIRCUIT COURT OF THE FIFTEENTH JUDICIAL CIRCUIT
IN AND FOR PALM BEACH COUNTY, FLORIDA**

**ECLECTIC SYNERGY, LLC,
f/k/a GARAGE SALE SHOP, LLC,**

**Case No.: 502014CA013268-XXXXMB
Division No.: AA**

Plaintiff,

v.

ALEXANDER SEREDIN and MONA SEREDIN,

Defendants.

SECOND AMENDED COMPLAINT

Plaintiff, ECLECTIC SYNERGY, LLC, formerly known as GARAGE SALE SHOP, LLC, by and through its undersigned counsel, sues ALEXANDER SEREDIN and MONA SEREDIN (collectively "Defendants"), and alleges:

**COUNT I
(Specific Performance)**

1. This count is for specific performance of a contract to convey real property located at 1731 North Federal Highway, Delray Beach, Palm Beach County, Florida ("Property"), also known as:

Lots 1, 2, 3, 4 and 5, in BLOCK B, SNOW HILL, & W ½ OF 15 FT ABNDED ALLEY LYG E OF & ADJ THERETO BLK B according to the Plat thereof on file in the Office of the Clerk of the Circuit Court in and for Palm Beach County, Florida, recorded in Plat Book 21, Page 83, together with the improvements thereon:

LESS that certain parcel of land described in Official Record Book 108, page 449, of the Public Records of Palm Beach County, Florida, as road right-of-way; and

SUBJECT to restrictions, reservations, easements of record, zoning ordinances, and taxes for the year 2010.

Palm Beach County, Florida Property Appraiser's Parcel Identification Number 12-43-46-09-15-002-0010

2. On October 1, 2010, plaintiff and defendants entered into a written contract, a copy being attached as Exhibit "A" and incorporated herein.

3. The contract governed the terms of plaintiff's leasing of defendants' property, and provided plaintiff an option to purchase the property at any time during the term of the contract.

4. The initial term of the contract was for two years and was extended in writing twice thereafter, a copy of the extensions being attached as Exhibit "B" and incorporated herein.

5. Plaintiff timely exercised its option to purchase the property described in the contract, and all conditions precedent to bringing this action have occurred or otherwise been waived.

6. Plaintiff tendered the purchase price to defendants and requested a conveyance of the property described in the contract.

7. Despite repeated requests to do so, Defendants have refused to accept the tender or make the conveyance.

8. Plaintiff offers to pay the purchase price.

9. Plaintiff was required to retain the undersigned counsel to represent it in this action and is obligated to pay the undersigned a reasonable attorney fee for the representation.

10. Plaintiff is entitled to an award of attorney's fees under the terms of the contract.

11. Plaintiff has no adequate remedy at law since the property is unique.

WHEREFORE, plaintiff demands judgment requiring defendants to perform the contract by conveying the real property to plaintiff, for attorney's fees and costs, and for such other relief the Court considers proper.

COUNT II
(Breach of Contract)

12. Plaintiff incorporates by reference the allegations contained paragraphs 2 through 10 as if fully set forth herein.

13. Plaintiff has fully performed its duties under the contract or satisfied all conditions, promises and obligations required to be performed or satisfied by it in accordance with the terms and conditions of the contract.

14. Defendants' refusal to accept the tender or make the conveyance is a breach of the contract.

15. Plaintiff has suffered damages as a direct and proximate result of Defendants' breach of the contract.

WHEREFORE, plaintiff demands judgment against defendants for damages, plus interest, costs and attorney's fees, and such other relief this Court deems just and proper.

I HEREBY CERTIFY that a true and correct copy of this Second Amended Complaint was sent this 23rd day of April, 2015, by email to Carl A. Cascio, Esquire, at casciolw@bellsouth.net and litigationcacpa@comcast.net by the court's e-service portal.

/S/ Garth J. Milazzo, Esquire
Garth J. Milazzo, Esquire FBN: 192848
401 East Las Olas Boulevard, Suite 1400
Fort Lauderdale, Florida 33301
(954) 621-3611 – Office
(954) 678-3103 –Facsimile
Garth@MilazzoLaw.com
Attorney for Plaintiff

EXHIBIT "A"

LEASE/OPTION AGREEMENT

AND

AGREEMENT FOR DEED

THIS LEASE/OPTION AGREEMENT, made this _____ day of September, 2010 by and between Alexander & Mona Seredin (hereinafter called the "Lessor") whose address is 2107 SW 13TH Street, Delray Beach, Florida 33445 and Garage Sale Shop LLC (hereinafter called the Lessee) whose address is 1651 n federal hwy Delray Beach FL 33483 and managing member is Olga Khoury

WITNESSETH:

That in consideration of the sum of **TWO THOUSAND DOLLARS and no/100 (\$2,000.00)** and other good and valuable consideration representing the first month's rent, the Lessor hereby acknowledges receipt of the above sum as part payment of rent accruing under this Agreement, and in the further consideration of the mutual covenants, agreements and conditions herein contained, Lessor does hereby Lease to the Lessee the following described real property (1731 N federal Hwy Delray Beach Fl, 33483) together with certain improvements and personal property (hereinafter referred to as "Leased Premises"):

Lots 1, 2, 3, 4 and 5, in BLOCK B, SNOW HILL,
& W 1/2 OF 15 FT ABNDED ALLEY LYG E OF & ADJ THERETO BLK
according to the Plat thereof on file in the Office of the Clerk of the Circuit Court in and for Palm Beach County, Florida, recorded in Plat Book 21, Page 83, together with the improvements thereon;

LESS that certain parcel of land described in Official Record Book 108, Page 449, of the Public Records of Palm Beach County, Florida, as road right-of-way; and

SUBJECT to restrictions, reservations, easements of record, zoning ordinances, and taxes for the year 2010.

In further consideration, included in the rental price shall be use of the improvements and personal property which are situated on the Leased Premises.

The following express stipulations and conditions are made a part of this Lease/Option and are hereby consented to by the Lessee:

1. **Term.** The term of this Lease shall be 24 months commencing on the 1st day of October, 2010 and terminating on the 30th day of September, 2012. Lessee shall have no right of holdover or option to extend or renew this Lease except as otherwise provided herein.

2. **Rent.** Lessee shall pay to Lessor on the first day of each and every month, at the address indicated above the sum of \$2,000.00 per month from January 1, 2011 through September 30, 2012. Total rent to be paid is \$44,000.00. The time of each payment of rent and other payments required hereunder is of the essence of this Lease and an additional charge of five (5) per cent of the monthly rental shall be charged Lessee for the processing of any payment made or received after the fifteenth (15th) day of the month due, including, if rent is paid by check any delays occasioned by the refusal of the drawee bank to honor said check for any reason and in addition thereto any charges to Lessor for any dishonored checks.

Lessor agrees that Lessee to waive the rent of Two Thousand (\$2,000.00) Dollars for two (2) months, giving the Lessee the months of October and November, 2010 rent free.

3. **Occupants.** Lessee agrees it shall occupy the premises for purposes of operating any lawful business under the designated General Commercial usage.

4. **Use of Premises.** Lessee covenants and agrees not to use or permit to be used the premises

leased for any illegal, immoral or improper purposes; not to make any disturbance, noise or annoyance whatsoever detrimental to the premises or to the comfort and peace of any of the neighboring properties, and shall not assign this lease nor sublet any part of the leased properties here leased, except with the written consent of the owner and only at a price which shall be an amount not less than the proportionate rate for the full term; not to use said premises for any other purpose other than for purposes of operating the premises as allowed under the applicable zoning code; to pay the cost of repairing all damage to the property caused by either the misuse or negligence of the Lessee, including all repairs to plumbing and electrical components.

5. Additional Terms and Conditions. Closing of title shall be no later than October 30, 2012, prorated for unless extended in writing by the parties. In the event Lessee fails to exercise his option as described below or fails to fulfill his obligation as stated herein, all monies deposited and all repairs and/or improvements or work performed to the property shall remain on the property.

The Lessee further agrees that if a default is made in the payment of rent as above set forth or any part thereof, if said Lessee or their guests/patrons shall violate any of the covenants, agreements and conditions of this Lease, then: (1) in the event of a monetary default, then if Lessee shall fail to cure any such default after three days from its receipt of a rent demand; or (2) in the event of a nonmonetary default, then if Lessee shall fail to cure any such default after fifteen days from its receipt of a Notice to Cure (or if the default cannot feasibly be cured within 15 days, then if Lessee shall fail to diligently commence efforts to cure within 15 days) the Lessee shall become a tenant at sufferance, and the Lessee will be at the end of his term and without demand, quietly and peaceably deliver up the possession of the premises in as good condition as it is now (ordinary wear and tear and the decay and damage by fire or the elements only excepted).

Said Lessee hereby agrees that in addition to the rental sum as stated above, he will pay for the cost of utilities, including, but not limited to, water, sewer, electric, gas and telephone. Lessee shall place utilities in his name by contacting the utility companies and placing the appropriate deposits for service to be placed in Lessee's name, by no later than 10 days from the effective date of this lease.

In addition, the Lessee shall be responsible for the payment of the real property taxes, for the year 2010, prorated from October 1, 2010, insurance (windstorm and hazard, with liability coverage up to \$500,000.00, garbage, all repairs and maintenance, landscaping and lawn maintenance for the Leased Premises as a condition of this Lease.

The sales price at the time of the purchase shall be \$550,000.00. The Lessee shall exercise the option to purchase the property within 30 days prior to ending date of the term of this Lease from by presenting to Lessor or Lessor's designated agent a properly executed offer to purchase containing the terms and conditions as agreed upon herein. If Lessee fails to timely exercise the option to purchase within the 30 days prior to ending date of the term of this Lease, all monies paid on the option and the lease shall be paid to Lessor and all parties shall be relieved of any further obligation under the Agreement for Deed and Lessee waives his right to purchase the property and the Lease will continue as a month-to-month Lease.

At the time of the purchase, the Lessee/Borrower shall execute promissory note in the principal amount to be determined by crediting the Lessee for all rental payments and any additional down payment less any outstanding rental obligation and closing costs. The Lessor/Seller agrees to give the Lessee/Borrower a promissory note for a term of ten (10) years with an interest rate of five (5%) percent with monthly payments of \$3,000.00, which will be applied towards interest and principal according to a standard amortization table, then any late fees and arrearages. Upon maturity of the note, the entire principal and any and all unpaid interest shall become due and payable. The Lessor/Seller agrees to extend the repayment of the note for an additional ten (10) years under the same terms and conditions of the existing note and shall remain in the first lien position. The Lessee/Borrower shall execute a mortgage in a first lien position on the property securing repayment of the promissory note. The mortgage shall remain in the first lien position in the event of any extensions of the terms on repayment of the promissory note.

The Lessee/Borrower may not cause any liens, fines, or mortgages to be placed on the property without the written consent of the Lessor/Seller. In the event that the Lessee/Borrower performs any improvements on the property, the Lessee/Borrower shall obtain any permits and shall pay all contractors and subcontractors for work performed in a timely manner in the event any claim of lien is filed, the Lessee/Borrower shall have 30 days within which to remove the claim of lien by either payment or bonding off the claim of lien. Failure to timely satisfy any claim of lien or to timely resolve any issue with regards to permitting or compliance with local and municipal codes, shall constitute a default under the terms of this lease.

In the event that the Lessee exercises his option to purchase the Leased Premises, the Lessee shall be given a credit at closing for the entire amount of the rental payments paid through September 30, 2012, and any security deposits which have been received by Lessor, if, but only if, the Lessee shall have been current on payment of all monthly rental payments and shall not be in default of any other provisions of this Lease. The Lessor acknowledges that the Lessee has paid \$2,000.00 deposit for the month of December, 2010.

Additionally, in the event that the Lessee exercises his option to purchase the Leased Premises, he understands that he is purchasing the property in the condition upon which he accepted the property on the commencement date of this Lease.

The Contract shall be the most recent standard Florida Bar Contract and an As Is Addendum, with the Buyer and Seller paying appropriate fees as is required by the Standards of Palm Beach County subject to prorations and adjustments. The purchase price shall include the personal property and improvements as stated above as part of the Leased Premises.

7. Lessee's Failure to Timely Exercise Option. In the event that the Lessee fails to timely exercise her option to purchase the Leased Premises, as set forth above, the Lessee shall become a tenant on a month to month basis.

8. Costs and Attorneys' Fees. Should any litigation be commenced between the parties thereto concerning the property, this contract, or the rights and duties of either in relation thereto, the party, the Lessor or the Lessee, prevailing in litigation shall be entitled, in addition to costs and such other relief as may be granted, to a reasonable sum as and for attorney's fees in such litigation.

9. Binding Effect. This contract shall be binding on and shall inure to the benefit of the heirs, executors, administrators, successors and assigns of the parties hereto.

10. Recording of Lease/Option Agreement for Deed. It shall be the obligation of the Lessee to record this Lease/Option in the Public Records of Palm Beach County, Florida and for payment of all recording fees.

IN WITNESS WHEREOF, Lessor/Seller hereunto set Lessor's/Seller's hand and seal the day and year first above written.

Signed, sealed and delivered
in the presence of:

LESSOR/SELLER

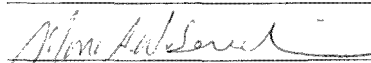
Alexander & Mona Seredin,


(Seal)

BY: _____

Printed or typed name:

ALEXANDER SEREDIN



MONA SEREDIN

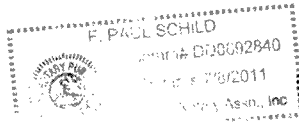
Printed or typed name:

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STATE OF FLORIDA)
COUNTY OF PALM BEACH)

The foregoing **LEASE/OPTION AGREEMENT AND AGREEMENT FOR DEED** was subscribed, sworn to and acknowledged before me this 1st day of October, 2010 by Alexander & Mona Seredin, who is personally known to me to be the individual described in and who executed the foregoing instrument or who has produced a driver's license as identification.

WITNESS my hand and official seal on this the 1st day of October, 2010.



[Signature]
Notary Public - State of Florida
My commission expires: 7/8/14

IN WITNESS WHEREOF, Lessee/Buyer hereunto set Lessee's/Buyer's hand and seal the day and year first above written.

Signed, sealed and delivered
in the presence of:

LESSEE/BUYER
(Garage Sale Shop LLC)
Managing Member: Olga Khoury

OLGA KHOURY
(Seal)
Printed or typed name: OLGA KHOURY

STATE OF ~~FLORIDA~~ New Jersey)
Bergen) SS:
COUNTY OF ~~PALM BEACH~~)

The foregoing **LEASE/OPTION AGREEMENT AND AGREEMENT FOR DEED** was subscribed, sworn to and acknowledged before me this 30 day of September, 2010 by OLGA KHOURY, who is personally known to me to be the individual described in and who executed the foregoing instrument or who has produced a driver's license as identification.

WITNESS my hand and official seal on this the 30 day of September, 2010.

[Signature]
Notary Public - State of Florida
My commission expires:

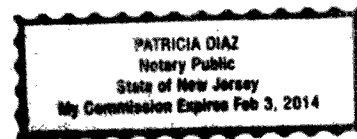


EXHIBIT "B"

EXTENSION OF THE AGREEMENT OF LEASE AND PURCHASE

We, the undersigned below, agree to extend the agreement expiring on October 1st 2012 with Hamid and Olga Khoury for an additional year until October 2013, under the same terms and conditions.

We urge you that in the next 12 months you apply for a mortgage on the property to cover the balance of the purchase price and close the purchase on or before October 1st 2013.

Signed,



Alex and Mona Seredin



October 2nd 2012

EXTENTION OF THE AGREEMENT OF LEASE AND PURCHASE

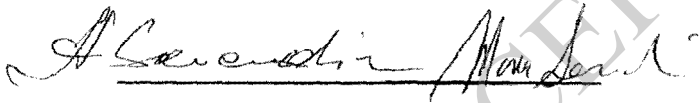
On real property described as 1731 n federal high way , Delray Beach fl 33483 .Holding the following legal description:

Lot 1,2,3 ,4 and 5,in block B SNOW HILL, AND W1/2 OF 15FT ABNDED ALLEY LYG E OF AND ADJ THERETO BLK

We, the undersigned below ,agree to extend the agreement expiring on October 1st 2013 with Garage Sale Shop LLC whose address is 1651 n federal hwy Delray Beach Fl 33483 and its managing owner Olga Khoury for an additional year until 1st October 2014, under the same terms and conditions.

Lessee agrees to pay property taxes for 2014 before due date.

SIGNATURE



Alexander and Mona Seradin

SIGNATURE



Garage Sale Shop LLC, managing
owner Olga Khoury

September 2013